

Virendra Kumar v. Managing Director, Paschimanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 6 July 2022 · Writ-C No. 16429 of 2022 · **Writ disposed without merits; petitioner relegated to a clause 6.8 objection, with a short stay of coercive recovery.**

HEADNOTE

On the licensee's statement that an objection to a provisional assessment and demand would be decided in a time-bound manner, the High Court disposed of the writ without examining merits. The consumer was given liberty to file an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; if filed, it is to be decided after hearing, preferably within the next four weeks. Coercive action on the demand is stayed for eight weeks or until disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Virendra Kumar petitioned the Allahabad High Court to quash a provisional assessment notice dated 2 December 2020 and a demand notice dated 20 December 2020 issued by Paschimanchal Vidyut Vitran Nigam Limited, and to restrain coercive recovery. Counsel for the distribution company stated on instructions that the petitioner could file an objection to the demand, which would be decided in accordance with law within a time-bound period. The Court recorded that statement and did not examine the merits of the assessment or demand.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to provisional assessment as alternate remedy

HOLDING

Without expressing any opinion on merits, a writ seeking to quash a provisional assessment notice and demand notice is disposed of by granting liberty to file an objection under para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; if so filed, the assessing officer must decide it in accordance with law after reasonable opportunity of hearing, preferably within the next four weeks, and no coercive action on the demand shall be taken for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

assessment-6.8-alternate-remedy The writ challenging the provisional assessment and demand was disposed without a merits decision, relegating the consumer to an objection under para 6.8 before the assessing officer. ¶ 1

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay If the para 6.8 objection is filed within four weeks, it is to be decided after hearing, preferably within four weeks; coercive recovery is stayed for eight weeks or until disposal, whichever is earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE PROVISIONAL ASSESSMENT NOTICE DATED 02.12.2020 AND DEMAND NOTICE DATED 20.12.2020

Court expressly declined to express any opinion on the merits. ¶ 1